

2:00 PM

LINE 8

24-CIV-03224

ZOILA GARCIA, INDIVIDUALLY, AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED VS
BAY AREA HERBS & SPECIALTIES, LLCZOILA GARCIA, INDIVIDUALLY, AND ON BEHALF OF ALL OTHERS
SIMILARLY SITUATED
BAY AREA HERBS & SPECIALTIES, LLC

SEUNG YANG

JOHN F. HYLAND

MOTION FOR ATTORNEY FEES

TENTATIVE RULING:

The court denies without prejudice plaintiff's counsel request for attorneys' fees, costs, and service awards. The court continues the motion to November 17, 2026 at 2:00 p.m. Plaintiffs' counsel shall file and serve supplemental pleadings on or before October 27, 2026. Plaintiffs are also reminded to provide courtesy copy binders to the court in compliance with paragraph 11 of the Case Management Order No. 1 filed June 18, 2024. The binder shall contain the papers for this motion and the supplemental motion. Counsel's failure to comply with this order for this motion has increased the court's workload.

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503.)

In reviewing the evidence submitted, the court finds that plaintiff's counsel makes no attempt to show that the hourly rates are reasonable for San Mateo County where this case is venued. Counsel must demonstrate that the rates are reasonable for San Mateo County. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) Further, counsel requests a blended rate of \$800.00, but provide no facts to support how that blended rate was calculated.

The court also has concerns regarding the work performed. There is no discussion on why there needed to be four attorneys on the case and how the work was allocated. Some of the work appears duplicative, some of the time for tasks appears potentially excessive, and it appears that some of the tasks could have been performed by attorneys that charge at a lower rate. Plaintiffs' counsel needs to provide further facts. Further, the court has concerns regarding the accuracy of the time entries attached as Exhibit 3 to the declaration of Tiffany Hyun. For example, there is no time for the hearing on the motion to compel arbitration and case management conference on September 24, 2024 and, in fact, no entries at all regarding the motion to compel arbitration despite the fact that plaintiff signed a stipulation signed on July 15, 2024 and filed July 19, 2024 for an order regarding a briefing schedule for the motion to compel arbitration, plaintiffs filed an opposition on August 21, 2024 and provided supplemental briefing on October 15, 2024.

As to the service awards, the declaration of Zoila Garcia is conclusory with general statements about time spent. There are no facts demonstrating claims that she gave up by signing a general release. There are no facts demonstrating reputational harm. While the court is aware of reputation harm, the law protects an employee from being retaliated against by an employer and if any plaintiff believe that any employer is retaliating against her for being a plaintiff in this lawsuit, they shall notify their counsel who shall immediately notify the court. The court has not been advised at any time during the course of this litigation of any alleged retaliation. *Gentry v. Superior Court* (2007) 42 Cal.4th 443 discusses the fear of retaliation as a reason an employee might not bring a lawsuit, but our Supreme Court states that the statistics demonstrated that enforcement mechanisms to sanction retaliation were working. (*Id.* at pp. 460-461.) There is no declaration from Carlos A. Orellana for final approval; only a conclusory declaration regarding time spent for preliminary approval.

As to the costs, there is no description for “Steno Litigation” and “Steno Invoice,” and “Admin Fee” for the cost to determine if the costs are reasonable and necessarily incurred.

2:00 PM

LINE 9

25-CIV-00564

ELAINE RYZAK FRASER VS. DWIGHT O WILLIAMS

ELAINE RYZAK FRASER
DWIGHT O WILLIAMS

ELAINE R. FRASER
PRO SE

MOTION TO SET ASIDE DEFAULT

TENTATIVE RULING:

The Motion to Set Aside Default (the “Motion”) brought by Defendant Dwight O. Williams is GRANTED.

Background

Per the Complaint, Defendant retained Plaintiff as his attorney in his dissolution matter in 2018. On about September 21, 2021, Defendant became delinquent in paying Plaintiff under the parties’ legal fee agreement, and thereafter kept promising Plaintiff to pay her from a personal injury settlement and from the sale of his house, but Plaintiff was never paid beyond a last payment of \$1,000 on January 4, 2024 (Complaint, p.5, ¶ 15) or May 1, 2024 (*id.*, p.6, box FR-2.b). Defendant has allegedly failed and refused to pay Plaintiff \$54,795.28.

Plaintiff requested and the Clerk entered the default of Defendant on December 2, 2025 (the “Default”). Plaintiff also sought a default judgment by the court, which the court denied without prejudice. (Judgment Denied without Prejudice, filed on March 5, 2026, p.2.)

As to the penultimate point, the court’s records show that Plaintiff filed proofs of service upon Defendant by substituted service upon his tenant at “236 Marvilla Cir [¶] Pacifica, CA 94044” and by mail at the same address (two Proofs of Service of Summons, filed on December 2, 2025, pp.1), which the court found questionable so that the served document was not filed.

Through his Motion to Set Aside Default (the “Motion”), Defendant now seeks an Order setting aside the default and any default judgment, and allowing him to file his proposed Answer.

The Motion Is Granted.

Inter alia, Defendant asserts that he was not validly served. (Code Civ. Proc., § 473, subd. (d).) In pertinent part, this statute provides that, “The court may, ... on motion of either party after notice to the other party, set aside any void judgment or order.”

According to Defendant and not disputed by Plaintiff, Defendant relocated from his residence in Pacifica, California, to Florida in 2020. (Williams Decl., ¶¶ 7, 9.) When the Summons and Complaint were served to his Pacifica address, it was occupied not by Defendant but by his tenants, whom he had not authorized to accept service of process on his behalf. (*Id.*, ¶ 10.) Defendant does not recall being personally served at his Florida residence. (*Id.*, ¶ 12.)

The Court’s records show that Plaintiff attempted service upon Defendant at an address in Florida (Non Service Report, filed on April 15, 2025), and then by substituted service upon his tenant at
